

OFFICE OF THE SECRETARY

P.O. Box 942883
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October 1, 2018

Honorable Charlaine F. Olmedo
Judge of the Superior Court
County of Los Angeles
210 West Temple Street
Los Angeles, CA 90012-3210

Re: Smith, Marvin Marvelos
CDC No.: AN2086
Case No.: BA383348-01
Date of Sentence: 12/17/2012

Dear Honorable Charlaine F. Olmedo:

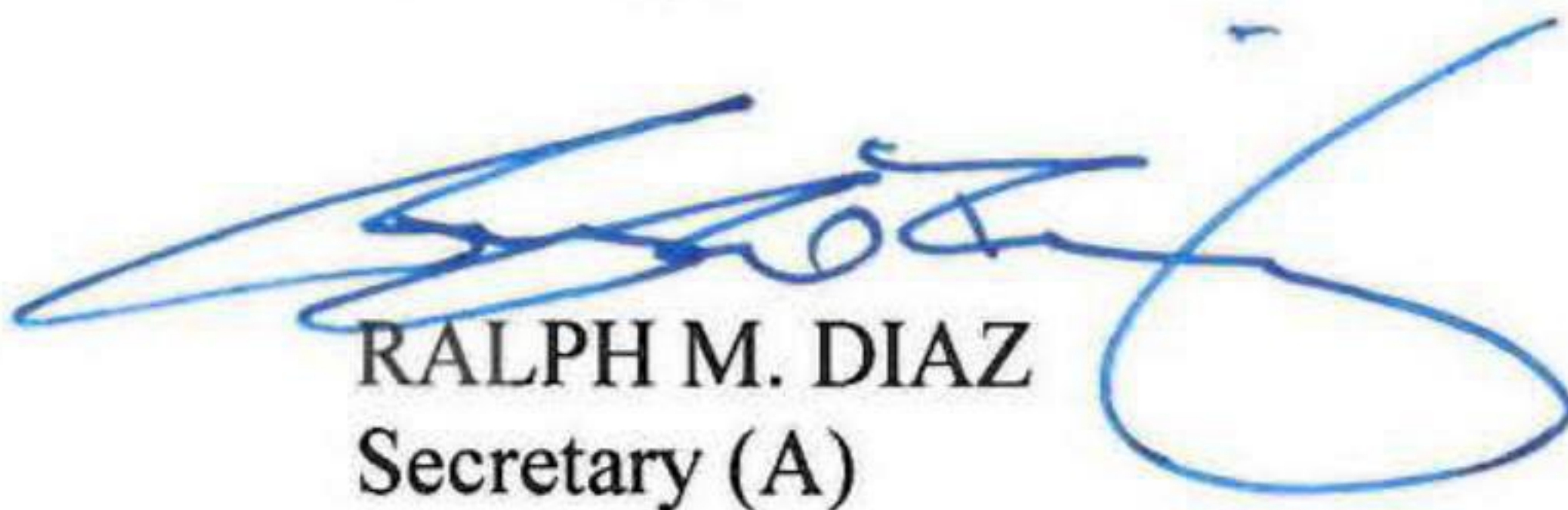
The purpose of this letter is to provide the court with authority to resentence Marvin Marvelos Smith pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Smith was sentenced in 2012, and was convicted of section 245, subdivision (A)(2), ASSAULT WITH A FIREARM. The trial court sentenced inmate Smith on 12/17/2012. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Smith's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Smith's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced in accordance with the cited authority.

Sincerely,

A blue ink signature of Ralph M. Diaz, consisting of a stylized, cursive script that flows from left to right, ending in a large, sweeping loop.

RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge
Los Angeles District Attorney
Public Defender

AN-2086

**FELONY ABSTRACT OF JUDGMENT—DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM**
(Not to be used for multiple count convictions or for 1/3 consecutive sentences)

CR-290.1

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: LOS ANGELES			
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: MARVIN MARVELOS SMITH AKA: CII NO.: A22938603 BOOKING NO.: 2701133 ☐ NOT PRESENT		DOB: 11-29-1983 CASE NUMBER BA383348-01	
FELONY ABSTRACT OF JUDGMENT ☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT ☒ AMENDED ABSTRACT			
DATE OF HEARING 12-17-2012	DEPT. NO. 100	JUDGE CHARLAINE F. OLMEDO	
CLERK ROBERT SAIKI	REPORTER CINDY ROSALES	PROBATION NO. OR PROBATION OFFICER X- 1998095 ☐ IMMEDIATE SENTENCING	
COUNSEL FOR PEOPLE SCOTT DOMINGUEZ		COUNSEL FOR DEFENDANT PIERPONT LAIDLEY ☒ APPOINTED	

1. Defendant was convicted of the commission of the following felony:

COUNT	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	SERIOUS FELONY	VIOLENT FELONY	TIME IMPOSED	
						JURY	COURT	FLEA				YRS.	MOS.
01	PC	245(A)(2)	ASSAULT WITH A FIREARM	2011	10-31-2012			X	L			2	

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

COUNT	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	TOTAL
01	12022.7(A) PC	3	186.22(B)(1)(B)PC	5			8

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	TOTAL

4. Defendant sentenced: ☐ to county jail per PC 1170(h)(1) or (2) ☐ per PC 667(b)-(i) or PC 1170.12 (strike prior) ☐ to prison per PC 1170(a) or 1170(h)(3) due to ☐ current or prior serious or violent felony ☐ PC 290 or ☐ PC 186.11 enhancement ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. ☐ Defendant ordered to report to local parole or probation office upon release.

5. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

Restitution Fine(s): \$240 per PC1202.4 (b) forthwith per PC 2085.5 if prison commitment \$240 per PC 1202.45 suspended unless parole is revoked. \$ per PC 1202.44 is now due, probation having been revoked.

Restitution per PC1202.4 (f): ☒ \$ ☐ Amount to be determined to ☐ * victim(s) ☐ Restitution Fund
* ☐ Victim name(s), if known, and amount breakdown in item 8, below. * ☐ Victim name(s) in probation officer's report.Fine(s): \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.☒ Court Operations Assess.: \$ 40 per PC 1465.8. ☒ Conviction Assess.: 30 per GC 70373. ☐ Other: \$ per (specify):6. TESTING: a. ☐ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 c. ☐ other (specify):7. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post sentence report to CDCR per PC 1203c. Def't's Race / National Origin **BLK**

8. Other orders (specify):

9. TOTAL TIME IMPOSED: 10

10. ☐ MANDATORY SUPERVISION: Execution of a portion of the total jail time imposed in item 9 is suspended and deemed a period of mandatory supervision under PC 1170(h)(5)(B) as follows: Suspended portion: Served forthwith:11. ☐ This sentence is to run concurrent with (specify):

12. Registration Required: per (specify code section):

13. Execution of sentence imposed: a. ☒ at initial sentencing hearing. b. ☐ at resentencing per decision on appeal. c. ☐ after revocation of probation. d. ☐ at resentencing per recall of commitment. (PC 1170(d).) e. ☐ other (specify):

DATE SENTENCE PRONOUNCED	CREDIT FOR TIME SPENT IN CUSTODY TOTAL DAYS:	ACTUAL LOCAL TIME	LOCAL CONDUCT CREDITS	TIME SERVED IN STATE INSTITUTION
12-17-2012	712	619	☐ 2933 ☐ 2933.1 ☐ 4019	DMH CDCR CRC
				[] [] []

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays. To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation. ☐ county jail ☐ Other (specify):

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE:  DATE APRIL 29, 2014

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213.5 for determinate sentences. Attachments may be used but must be referred to in this document.

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